

PETITION FOR EXPUNGEMENT OF CRIMINAL RECORD (MISS. CODE ANN. SEC. 99-19-71(2))

IN THE COURT OF COUNTY, MISSISSIPPI
(justice / county / circuit / municipal - the court in which the conviction was had)

STATE OF MISSISSIPPI

VS.

....., PETITIONER

CAUSE NO.

PETITION FOR EXPUNGEMENT OF CRIMINAL RECORD

COMES NOW the Petitioner, Maria-Alejandra O'Shaughnessy-Whitfield, and petitions this Court under Miss. Code Ann. Sec. 99-19-71(2) for an order expunging ONE felony conviction from all public records, and would show:

1. IDENTIFYING INFORMATION.

Petitioner's name: Maria-Alejandra O'Shaughnessy-Whitfield

Date of birth: 1964-12-31

Mailing address: 1188 Upper Notch Crossing Road, Apartment 14B, Bay St. Louis, Mississippi
39520-2214

Telephone: (228) 555-0199 ext. 4417

Email: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

(Petitioner's race is not stated. No statute requires it and this packet does not collect it.)

2. THE CONVICTION. Copied from the sentencing order and the indictment:

Felony of conviction, worded as the record states it:

.....

Mississippi Code section of conviction:

.....

Date of the offense:

Date of arrest:

Arresting agency:

Agency case number:

Date of conviction:

Judgment of the court, as entered:

.....

3. ONE CONVICTION ONLY. Section 99-19-71(2)(a) permits ONE felony expunction. The enrolled text of 2026 HB 1546 defines 'one (1) conviction' and 'one (1) felony expunction' to mean and include all convictions that arose from a COMMON NUCLEUS OF OPERATIVE FACTS, as determined in the discretion of the court.

Where more than one conviction is included, identify each and state the facts said to make them one nucleus. This is left for Petitioner and counsel; it decides whether Petitioner spends the one allowance or is ineligible, and the statute commits it to the court's discretion:

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.....

4. FINES AND COSTS PAID. Section 99-19-71(2)(a) requires that all criminal fines and costs of court imposed in the sentence of conviction have been paid.

Date all fines, costs and restitution were paid in full, per the clerk's account balance record:

.....

5. THE THREE-YEAR PERIOD. Section 99-19-71(2)(a), as amended by 2026 HB 1546 effective 1 July 2026, permits the petition THREE (3) YEARS after the successful completion of all terms and conditions of the sentence. HB 1546 struck 'five (5)' and inserted 'three (3)'.

Date Petitioner successfully completed the LAST of all terms and conditions of the sentence - not the conviction date and not the release date:

.....

6. NOT AN EXCLUDED OFFENSE. Section 99-19-71(2)(a) excludes twelve categories. Whether this conviction falls outside all of them is a characterisation left for Petitioner and counsel, and is not asserted by the preparer of this petition:

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.....

7. NOT A PUBLIC OFFICIAL'S OFFENSE. Section 99-19-71(5) makes no public official eligible for expunction for any conviction related to his official duties.

8. REHABILITATION. Section 99-19-71(2)(b) permits the court to grant if it determines, on the record or in writing, that the applicant is rehabilitated from the offense. That determination is the Court's. Petitioner's showing:

.....
.....

9. NOTICE TO THE DISTRICT ATTORNEY. Section 99-19-71(2)(b) requires Petitioner to give TEN (10) DAYS' written notice to the district attorney before any hearing on this petition. That notice accompanies this petition and the certificate of service evidences it.

WHEREFORE, Petitioner asks the Court to expunge the conviction identified above from all public

records, and for such other relief as is proper.

DATE SIGNATURE OF PETITIONER

(Petitioner signs and dates this petition. Nothing on this page is signed or dated for Petitioner, and this petition contains no recital that Petitioner appears by or through an attorney.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

ADDRESS: 1188 Upper Notch Crossing Road, Apartment 14B, Bay St. Louis, Mississippi 39520-2214

TELEPHONE: (228) 555-0199 ext. 4417 EMAIL:

maria.alejandra.oshaughnessy.whitfield@longmailexample.org

DECLARATION. Petitioner states that the matters set out above are true and correct to the best of Petitioner's knowledge, information and belief.

Route: obligation:track-pathway:MS:ms-fel:eligible-felony-conviction-expungement-99-19-71

PROPOSED ORDER OF EXPUNGEMENT

IN THE COURT OF COUNTY, MISSISSIPPI
(justice / county / circuit / municipal - the court in which the conviction was had)

STATE OF MISSISSIPPI

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....., PETITIONER

CAUSE NO.

ORDER OF EXPUNGEMENT

THIS DOCUMENT IS A PROPOSED ORDER. It is unexecuted. It records no finding this Court has made and nothing in it asserts that the Court has acted. It is prepared so that it is available to the Court if the Court grants the petition.

THIS CAUSE came before the Court on the Petition of Maria-Alejandra O'Shaughnessy-Whitfield for expungement of one felony conviction under Miss. Code Ann. Sec. 99-19-71(2).

The Court FINDS (findings to be made by the Court, including the determination on the record or in writing that the applicant is rehabilitated from the offense):

.....
.....

IT IS THEREFORE ORDERED AND ADJUDGED that the felony conviction identified in the Petition be, and it is hereby, EXPUNGED from all public records under Miss. Code Ann. Sec. 99-19-71(2).

IT IS FURTHER ORDERED that, as Miss. Code Ann. Sec. 99-19-71(3) provides, a nonpublic record shall be retained by the Mississippi Criminal Information Center solely for the purpose of determining whether, in subsequent proceedings, the person is a first offender.

SO ORDERED AND ADJUDGED this day of, 20....

.....
JUDGE

APPROVED AS TO FORM:

.....
Prosecuting authority

(The findings, the date of entry, the judge's signature and the prosecuting authority's approval as to form are all left blank. They are not the participant's to complete.)

Route: obligation:track-pathway:MS:ms-fel:eligible-felony-conviction-expungement-99-19-71

CERTIFICATE OF SERVICE

IN THE COURT OF COUNTY, MISSISSIPPI
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....., PETITIONER

CAUSE NO.

CERTIFICATE OF SERVICE

This certificate is captioned for THIS petition. Section 99-19-71(2)(b) requires ten days' written notice to the district attorney before any hearing, and this certificate is the evidence of it.

I, Maria-Alejandra O'Shaughnessy-Whitfield, certify that I have this day served a true and correct copy of the Petition for Expungement of Criminal Record and the Ten Days' Written Notice on the district attorney, by United States mail, postage prepaid, or by hand delivery, addressed as follows:

District attorney for the county of conviction - name and office:

.....

Address served:

.....

Manner of service (United States mail or hand delivery):

Date served:

(At least TEN DAYS must pass between this date and any hearing on the petition.)

.....

Maria-Alejandra O'Shaughnessy-Whitfield, Petitioner

Date:

(Service dates are written when service is actually made. Nothing on this page is dated for Petitioner. No prosecutor's name or address is printed here: the platform holds none for any Mississippi district and does not guess one.)

Route: obligation:track-pathway:MS:ms-fel:eligible-felony-conviction-expungement-99-19-71

DOCUMENTS TO OBTAIN BEFORE FILING

Prepared for: Maria-Alejandra O'Shaughnessy-Whitfield

Get these before you write anything on the petition. Every one of them is a record the platform has not seen, and every dotted blank is filled from the record itself rather than from memory.

1. CERTIFIED COPY OF THE SENTENCING ORDER - from the circuit clerk of the county of conviction. It establishes the conviction, the sentence, and the terms that had to be completed.
2. COPY OF THE INDICTMENT - from the circuit clerk of the county of conviction. It is expected in practice on a felony petition. NOTE: this petition does NOT plead a grand jury indictment as a mandatory allegation, because many cases are resolved without one; the copy is obtained because practice expects it, not because the statute requires the allegation.
3. DOCKET SHEET FOR THE CASE - from the clerk of the court where the case was heard. It shows every court-imposed term and whether each was satisfied.
4. ACCOUNT BALANCE SHEET SHOWING A ZERO BALANCE - from the clerk of the court where the case was heard. Section 99-19-71(2)(a) requires all criminal fines and costs of court imposed in the sentence to have been paid, and Mississippi courts commonly require a zero balance.
5. PROOF OF COMPLETION OF PROBATION, SUPERVISED RELEASE OR TREATMENT - from the supervising authority or programme. THE THREE-YEAR CLOCK RUNS FROM THE DATE THE LAST TERM WAS COMPLETED, so this document, not memory, supplies that date.
6. YOUR MISSISSIPPI CRIMINAL HISTORY RECORD - from the Mississippi Criminal Information Center. It is the only reliable way to see every case on your record, including any prior expunction, before you file.

A PRIOR EXPUNCTION STILL SHOWS FOR ONE PURPOSE. Section 99-19-71(3) retains a nonpublic record with the Criminal Information Center solely to determine first-offender status in subsequent proceedings. An earlier expunction does not disappear for that purpose.

Route: obligation:track-pathway:MS:ms-fel:eligible-felony-conviction-expungement-99-19-71

FILING INSTRUCTIONS AND WHAT THIS ORDER DOES NOT DO

This packet is prepared for asking the Mississippi court that convicted you to expunge one felony conviction under Miss. Code Ann. Sec. 99-19-71(2).

Prepared for: Maria-Alejandra O'Shaughnessy-Whitfield

BEFORE ANYTHING ELSE: GET A LAWYER TO REVIEW THIS. The committed legal record on this route says so without qualification. Every felony conviction carries mandatory attorney review before filing. The twelve-category exclusion list, the discretionary rehabilitation finding, and the fact that Sec. 99-19-71(2)(a) allows ONE felony expunction IN A LIFETIME make this route unsuitable for unassisted self-help. Filing the wrong petition can spend an allowance you cannot get back.

WHERE THIS IS FILED. File the petition, the proposed order and the certificate of service with the CIRCUIT CLERK OF THE COUNTY OF CONVICTION - the court in which the conviction was had. Mississippi has no statewide form, so call that clerk before filing to ask about that district's own requirements.

WHAT IT COSTS. Miss. Code Ann. Sec. 99-19-72 levies a filing fee of ONE HUNDRED FIFTY DOLLARS (\$150.00) on each petition to expunge an offense under Sec. 99-19-71, to be collected by the circuit clerk. It is distributed \$100 to the Judicial System Operation Fund, \$40 to the District Attorneys Operation Fund and \$10 retained by the circuit clerk. This petition is a petition to expunge an offense under Sec. 99-19-71, so the fee applies to it on the face of the statute.

TWO THINGS ABOUT THAT FIGURE. Filing method and local court practice may add to the total. And the records this packet is built from record an open question about whether the Sec. 99-19-72 fee reaches petitions filed in justice or municipal court rather than circuit court, because the collection mechanism names the circuit clerk. That question is NOT settled here. **CONFIRM THE AMOUNT WITH THE CIRCUIT CLERK OF THE COUNTY OF CONVICTION** before you file.

ABOUT A FEE WAIVER. No waiver procedure specific to expungement is established in the records this packet is built from. Ask **THE SAME CIRCUIT CLERK** - the clerk of the county of conviction, who takes the filing and collects the fee - about a pauper's affidavit before you pay.

WHO YOU SERVE, AND THE ONE HARD DEADLINE. Serve the DISTRICT ATTORNEY for the county of conviction, by United States mail or hand delivery, and file the certificate of service as your evidence of it. Section 99-19-71(2)(b) requires TEN (10) DAYS' written notice to the district attorney **BEFORE ANY HEARING.** That is the one hard timing rule on this route. No response or objection period is fixed by the statute, and the district attorney may appear.

THE HEARING AND THE FINDING. A hearing is held as determined in the discretion of the court. The court may grant if it determines, on the record or in writing, that the applicant is rehabilitated from the offense. Where the court denies, its findings must be identified specifically and not generally.

WHAT THIS ORDER DOES NOT DO - AND THIS IS UNUSUAL, SO READ IT.

An employer may still ask. Section 99-19-71(3) expressly provides that the existence of an order of expunction does NOT preclude an employer from asking a prospective employee whether an order of expunction has been entered on their behalf. That is a real and unusual limitation of Mississippi law, and you must know about it.

A juror must still tell the court. A person called as a prospective juror must, on request, advise the court in camera of the previous conviction and the expunction.

The Criminal Information Center still holds a nonpublic record. Section 99-19-71(3) retains it solely for determining whether, in subsequent proceedings, the person is a first offender. An earlier expunction does not restore first-offender status.

ONE IN A LIFETIME. Section 99-19-71(2)(a) permits one felony expunction. Where more than one conviction is involved, whether they arose from a COMMON NUCLEUS OF OPERATIVE FACTS - and therefore count as one - is determined in the discretion of the court. Get that assessed before filing.

WHEN TO STOP AND GET HELP INSTEAD.

- ALWAYS, on this route. Attorney review before filing is mandatory on the committed record.
- Any offense near the exclusion list, especially a crime of violence, embezzlement, a firearm offense, or the felony procuring and promoting prostitution offenses newly added by 2026 HB 1546.
- Any prior expungement of any kind, and in particular any prior felony expunction.
- More than one felony conviction, where the common-nucleus question decides whether you spend your one allowance or are ineligible.
- Any unpaid balance of fines, costs or restitution.
- Any public-official question - Sec. 99-19-71(5) makes no public official eligible for a conviction related to official duties.
- You are not a United States citizen.
- The district attorney objects, declines to approve the order as to form, or the court sets a contested hearing.

SAY EXPUNGE, AND DO NOT SAY THE RECORD NEVER EXISTED. This route expunges from PUBLIC records. The Criminal Information Center keeps a nonpublic record for the first-offender purpose, employers may ask about the expunction, and prospective jurors must disclose it. Do not tell anyone the conviction never happened.

Route: obligation:track-pathway:MS:ms-fel:eligible-felony-conviction-expungement-99-19-71

TEN DAYS' WRITTEN NOTICE TO THE DISTRICT ATTORNEY

IN THE COURT OF COUNTY, MISSISSIPPI
(justice / county / circuit / municipal - the court in which the conviction was had)

STATE OF MISSISSIPPI

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....., PETITIONER

CAUSE NO.

TEN DAYS' WRITTEN NOTICE TO THE DISTRICT ATTORNEY

(Miss. Code Ann. Sec. 99-19-71(2)(b))

TO: The District Attorney for the county of conviction

Name and office:

.....

Address:

.....

PLEASE TAKE NOTICE that Maria-Alejandra O'Shaughnessy-Whitfield, Petitioner in the above-captioned cause, has filed a Petition for Expungement of Criminal Record under Miss. Code Ann. Sec. 99-19-71(2), seeking expungement of one felony conviction from all public records.

This notice is given under Miss. Code Ann. Sec. 99-19-71(2)(b), which requires the petitioner to give TEN (10) DAYS' written notice to the district attorney before any hearing on the petition.

A copy of the Petition accompanies this notice.

Hearing date, if one has been set by the Court:

DATE SIGNATURE OF PETITIONER

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

ADDRESS: 1188 Upper Notch Crossing Road, Apartment 14B, Bay St. Louis, Mississippi 39520-2214

TELEPHONE: (228) 555-0199 ext. 4417 EMAIL:

maria.alejandra.oshaughnessy.whitfield@longmailexample.org

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